

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2024CUOE020097: MARIA RODRIGUEZ vs CLINICAS DEL CAMINO REAL INC

08/05/2026 in Department 44

Hearing on Motion for Final Approval of Settlement

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff Maria Rodriguez's Motion for Final Approval of Class Action Settlement and PAGA Award ("Motion")

Tentative Ruling:

The Court GRANTS the Motion as follows:

1. Approval of Key Financial Terms of Settlement

Description	Preliminary Approved	Approved
Gross Settlement Amount (GSA)	700,000.00	700,000.00
Less: Attorney Fees (not to exceed)	233,333.33	200,000.00
Less: Costs (not to exceed)	25,000	11,453.58
Less: Administrative Costs (not to	21,500	15,000

exceed)		
Less: PAGA Penalties	60,000	60,000
Less: Service Award	10,000	10,000
Net Settlement Before PAGA add-back	350,166.67	403,546.42
Plus PAGA Penalty to Aggrieved Employees (allocated per Lab. Code § 2699(m)) ¹	15,000	15,000
Net Settlement After PAGA add-back	365,166.67	418,546.42

2. **Timely Service.** The Motion was timely served on all parties, to include service of the Motion and settlement agreement on the LWDA. (Labor Code § 2699(s)(2); Code Civ. Proc. §§ 1005, 1010.6.)

3. **Conformity with Rules of Court.** The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial court has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].)

4. Class Notice, Opt Outs, Objections & Estimated Payments

The class is defined as: "All current and former non-exempt, hourly employees of Defendant Clinicas Del Camino Real, Inc. who worked at any time in California during the Class Period. The Class Period is the time period of June 29, 2022 through August 1, 2025." The aggrieved employees for purposes of PAGA are those "current and former non-exempt, hourly employees employed by Defendant in California at any time between February 6, 2023 and August 1, 2025."

The Court finds that class notice was disseminated in compliance with the Preliminary Approval Order, California Rules of Court, rule 3.766, and in a manner that satisfies due process.

At preliminary approval, the estimated number of class members was 1,143, and the final number of class members is 1,171. Collectively, the class members worked 107,975 workweeks. The settlement allocation formula provided for pro rata distribution. There were zero objectors or requests for exclusion, representing a 100% acceptance rate. The average individual payout is estimated to be \$310.60, with the range of payments from \$3.37 to \$545.70, and an average net

¹ Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Labor Code § 2699(m).) Here the letter to LWDA was dated January 31, 2024.

value per workweek is \$3.37. The average PAGA payment to the 1,064 aggrieved employees is estimated to be \$14.10, with a range of \$0.34 to \$22.17.

5. **Attorney Fee Award.** The Court preliminarily approved a fee recovery up to 33.3 % of the common fund. (*Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 503.)

Lodestar Cross-Check. Class counsel request fees of \$233,333.33, representing 33.33% of the Gross Settlement Amount. In a common-fund case, the Court may award a reasonable fee calculated as a percentage of the fund, and may in its discretion employ a lodestar cross-check to confirm that the percentage yields a reasonable fee. (*Laffitte v. Robert Half Internat., Inc.* (2016) 1 Cal.5th 480, 503, 506.) The lodestar is the number of hours reasonably expended multiplied by a reasonable hourly rate. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Class counsel have submitted declarations reporting 141.6 hours reasonably expended, at hourly rates ranging from \$625 to \$950, for a lodestar of \$114,672.50. Costs for paralegals are not appropriately included in this calculation, but if they were, the claim is that they spent 18.4 hours in total, accounting for \$4,600 in fees at \$250 per hour. Having reviewed the supplemental declaration attorney Milan, there is only a very general summary of hours worked provided, with no billing records submitted or details provided whatsoever. Accordingly, the Court **cannot** find that the hours were reasonably expended or that the claimed rate are reasonable for attorneys of comparable skill and experience in the Ventura County legal market. On a cross-check, the lodestar figure need not be scrutinized with the same precision required when the lodestar is the primary basis for the award. (*Laffitte*, at p. 505.)

Multiplier. The requested fee reflects a multiplier of slightly more than 2; i.e., the requested fee of \$233,333.33 / lodestar amount of \$114,672.50.

The requested percentage produces a fee substantially disproportionate to the lodestar and factors set forth in *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132, citing *Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [contingent nature of the fee, risk of nonpayment undertaken at outset of representation, novelty and difficulty of questions presented, skill displayed in litigating the matter, extent to which the engagement precluded other employment, and results achieved for the class].) Thus, Plaintiff's requested fees are not justified.

Using a benchmark of 25% of the gross settlement amount, the Court approves an attorney fee award in the amount of \$200,000, representing approximately 28.5% rate.

6. **Service Award.** Plaintiff Maria Rodriguez seek an incentive award of \$10,000. The Court has reviewed the declaration and finds within its discretion that an award of \$10,000 is reasonable and reflects the class representative's actual effort, risk, and contributions to the litigation, and is not disproportionate to plaintiff's expended effort. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393–1395.)

7. **Attorney Costs.** Costs were previously approved in an amount not to exceed \$25,000. Plaintiff's counsel now submits a request for approval of verified costs in the amount of

\$11,453.58. The court has reviewed the information submitted in support of the requests for costs and allows the amount requested in the amount of \$11,453.58.

8. **Settlement Administration.** The Court previously Phoenix Settlement Administrators as the settlement administrator in this case. The Court has now reviewed the declaration of the administrator, Mayra Gonzalez, that verifies the timely sending of class notice, efforts to find class members with invalid addresses, the number of objections from class members, the number of opt outs from class members. There were no notices returned.

The Court previously approved costs for the settlement administrator in an amount not to exceed \$21,500. However, the case assumptions attached to the estimate are based on 2,243 class members, when there were roughly half that amount. Given the quoted rates contained in the June 11, 2025 estimate, the Court finds that only a portion of the amount requested is adequately supported. The Court approves the administrator expenses in the amount of \$15,000.

9. **Cy Pres.** The California State Controller's Office - Unclaimed Property Fund is an appropriate recipient for any unclaimed settlement funds in this case, to be held in the name of the Settlement Class Member.

10. **Fairness of Settlement.** The Court previously found that Plaintiff met their burden to show that the settlement was obtained after an arm's-length negotiation, and is fair, adequate and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Ca vl.App.4th 1794, 1801 [adequacy and reasonableness factors include consideration of case strengths, risks, and posture; settlement amount; experience of counsel].) The Court now confirms its prior findings in connection with its review of the Motion for Final Approval. Based on the final record - including the notice results, the number of objections and requests for exclusion, and the reaction of the class - the Court independently finds the settlement fair, adequate, and reasonable and in the best interests of the class. (Cal. Rules of Court, rule 3.769(g).) The Court further finds the PAGA settlement fair, reasonable, and adequate in view of PAGA's purposes (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77), and confirms the settlement was submitted to the LWDA; the release reflects that aggrieved employees may not opt out of the PAGA settlement (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 541, fn. 5).

11. **Disposition.** Subject to any modifications above, the Court GRANTS the motion and will sign the proposed order to be modified in accordance with this order. The Court retains jurisdiction over the parties to enforce the terms of the settlement (Code Civ. Proc., § 664.6) and the judgment. Any Proposed Judgment shall not include a dismissal or findings not contained in this order. (Cal. Rules of Court, rule 3.769(h).) The parties are ordered to otherwise effectuate the terms of the settlement in a manner not inconsistent with this Order.

The Court hereby sets the hearing for final settlement compliance on Wednesday, **February 3, 2027 at 1:30 p.m.** Plaintiff shall file a declaration concerning settlement compliance at least 10 days in advance of the compliance hearing date.

Plaintiff's counsel shall give notice.

